



## CHAPTER lxx.

An Act to confirm a Provisional Order under the Inclosure Acts 1845 to 1899 relating to Coity Wallia Commons in the county of Glamorgan and for purposes incidental thereto. A.D. 1919.  
[15th August 1919.]

**W**HEREAS the Board of Agriculture and Fisheries did in pursuance of the Inclosure Acts 1845 to 1899 issue in the year nineteen hundred and eighteen a Provisional Order for the regulation of Coity Wallia Commons in the county of Glamorgan in the terms set forth in the schedule to this Act and in a special report certified that it was expedient that the same should be confirmed by Parliament: 8 & 9 Vict.  
c. 118 &c.

And whereas a Committee of the House of Commons to which the said Provisional Order was referred recommended that the same should be confirmed without modification:

And whereas the said regulation cannot be proceeded with without the previous authority of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said Provisional Order of Regulation set forth in the schedule to this Act is hereby confirmed. Order in  
schedule  
confirmed.

2. The Local Government Board may if they think fit sanction the contributions undertaken to be made by the Penybont Rural District Council as in the Provisional Order recited



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A.D. 1919.      and for such purpose determine the expenses so incurred by the council to be special expenses charged on the parishes and part of a parish on which rates for such expenses are under the Provisional Order proposed to be levied.

Short title.      **3.** This Act may be cited as the Commons Regulation (Coity Wallia) Provisional Order Confirmation Act 1919.



SCHEDULE.

A.D. 1919.

*Provisional Order for the Regulation of Coity Wallia Commons.*

WHEREAS persons interested in certain lands called or known as Cefn Hirgoed Common Hirwaun Common Ystrad-y-Waun Allt-y-Rhiw and Mynydd-y-Gaer (hereinafter referred to as "the commons") situate in the parishes of Pencoed Coychurch Higher St. Bride's Minor and Coity Higher in the county of Glamorgan such lands being commons within the meaning of the Inclosure Acts 1845 to 1899 made application to the Board of Agriculture and Fisheries (hereinafter referred to as "the Board") to issue a Provisional Order for the regulation of the commons and to certify that it is expedient that such Provisional Order should be confirmed by Parliament:

And whereas it was made to appear to the Board that the persons making the said application represented at least one-third in value of such interests in the commons as are proposed to be affected by the Provisional Order:

And whereas the Board having taken the said application into consideration were satisfied that a *prima facie* case had been made out and that regard being had to the benefit of the neighbourhood as well as to private interests it was expedient to proceed further in the matter and accordingly ordered a local inquiry to be held by an officer of the Board:

And whereas the said officer having caused public notice to be given as required by the said Acts held pursuant to such notice public meetings in accordance with the requirements of the said Acts to hear all persons desirous of being heard on the subject-matter of the said application and any information or evidence which might be offered in relation thereto and inquired into the correctness of the statements in the said application and otherwise into the expediency of making the Provisional Order applied for and into the nature of the provisions to be inserted in such Provisional Order:

And whereas the said officer inspected the commons as required by the said Acts:

And whereas the said officer duly reported in writing to the Board the result of the local inquiry and of the public meetings held by him together with all the information and other matters required by the said Acts:



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And whereas the provisions of the said Acts have been in all respects complied with:

And whereas the Board have prepared and sealed a map (hereinafter referred to as "the said map") on which the reputed boundaries of the commons together with the encroachments made thereon are coloured green:

And whereas the commons are waste lands of the manor of Coity Wallia and the Right Honourable Windham Thomas Earl of Dunraven and Mount Earl the lord of the said manor claims to be entitled as such lord to the soil of the commons:

And whereas the free tenants customary tenants and residents inhabiting within the manor of Coity Wallia have time out of mind pastured all manner of beasts without limit on the commons and the lord of the said manor and persons representing at least two-thirds in value of such interests in the commons as are affected by this Order are willing that such practice whether the same be now exercised as of right or not should be continued and established by this Order:

And whereas the Penybont Rural District Council (within the district of which the commons are situate) with the consent of the council for the county of Glamorgan and with the sanction of the Board and in exercise of the powers conferred upon them under the Local Government Act 1894 and the Commons Act 1876 have entered into an undertaking (subject to such sanction of the Local Government Board as is hereinafter mentioned being obtained) to contribute out of their funds for or towards the maintenance of the commons as an open space or the improvement of the commons or otherwise for the benefit of the inhabitants of their district in relation to the commons such amounts as the conservators may from time to time require for such purposes but not exceeding in any half-year the amount produced by a rate of one halfpenny in the pound levied for special expenses on the parishes of Pencoed Coychurch Higher and St. Bride's Minor and on such part of the parish of Coity Higher as lies within the manor of Coity Wallia and have undertaken to apply to the Local Government Board for their sanction for the levying of such rates:

Now therefore the Board being satisfied that regard being had to the benefit of the neighbourhood as well as to private interests it is expedient to proceed further in the matter do by virtue of the powers in this behalf given to them by the Inclosure Acts 1845 to 1899 and the Board of Agriculture and Fisheries Acts 1889 to 1909 make this their modified Provisional Order as follows (that is to say):—



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PART I.

A.D. 1919.

IMPROVEMENT.

For the improvement of the commons the following provisions shall be put in force:—

- (A) There shall be twelve conservators of the commons to be appointed or elected as follows (that is to say):—

Two to be appointed by the lord of the manor of Coity Wallia two members of the Penybont Rural District Council to be appointed by that council two members of the Pencoed Parish Council to be appointed by that council two members of the Coychurch Higher Parish Council to be appointed by that council two members of the St. Bride's Minor Parish Council to be appointed by that council and two members of the Coity Higher Parish Council to be appointed by that council The first conservators shall come into office on such day as the Board shall direct:

- (B) The conservators shall have power—

(1) to drain manure and level the commons where necessary for the purpose of improving the commons for the pasturage of cattle and sheep or the purposes of recreation;

(2) to plant trees on parts of the commons whether for shelter or otherwise or in any other way to improve or add to the beauty of the commons;

(3) to cut the bracken from time to time on any parts of the commons (except the part or parts for the time being appropriated for the purpose of supplying bracken for the labouring poor as hereinafter provided) if and so far as such cutting is expedient for the improvement of the pasturage Provided that there shall always be left a sufficient quantity of bracken to satisfy the lawful requirements of the commoners and the conservators may sell any bracken so cut and shall apply the proceeds of such sale in or towards the expenses of the execution of their powers and duties under this Provisional Order;

(4) to make byelaws and regulations (subject to any such confirmation as is by law required) for—

(i) preventing nuisances on the commons or protecting them therefrom or for keeping order thereon;

(ii) preventing malicious or wanton injury to property therein or thereon;



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(iii) regulating the exercise of any rights of common therein or thereon or of any rights or privileges granted to the labouring poor or other persons under or in pursuance of this Provisional Order;

(iv) regulating the exercise of the privileges hereinafter reserved of access recreation and playing of games on the commons; and

(5) Generally to manage the commons.

PART II.

PROVISIONS FOR THE BENEFIT OF THE NEIGHBOURHOOD.

For the benefit of the neighbourhood:—

(A) There shall be reserved subject to any byelaws and regulations made under this Provisional Order—

(1) a right of free access at all times to the commons (except such parts thereof as shall be sold or shall be appropriated under this Order for quarries or field-gardens) and a privilege of recreation by walking and enjoying air and exercise thereon;

(2) a privilege of playing games on such parts (not less in extent than thirty acres nor greater in extent than fifty acres in all) of the commons as shall be convenient for the inhabitants of the neighbourhood in such situation and of such area in each case as the conservators with the approval of the Board shall from time to time appoint and the conservators may cause any such part or parts to be temporarily inclosed with posts and chains or other open fences:

(B) Quarries shall be appropriated and set out by the conservators from time to time to the satisfaction of the Board for the getting of stone and gravel by the persons (including the lord of the manor and his tenants) entitled to rights of taking stone and gravel from the commons for use in or upon the tenements to which such rights are appendant or appurtenant but not otherwise or for sale:

(C) There shall be appropriated and set out by the valuer to the satisfaction of the Board a sufficient part or parts of the commons in such situation as to be conveniently accessible for the purpose of supplying bracken for the labouring poor of the said parishes of Pencoed Coychurch Higher St. Bride's Minor and Coity Higher (other than persons entitled to rights of



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common for that purpose) and the part or parts so set out shall be marked out in such manner as the conservators think fit but shall not be fenced or inclosed. This appropriation shall not affect any right of common of pasture exerciseable over the part or parts so appropriated. The said labouring poor of the said parishes shall have the exclusive right to cut and take bracken from such part or parts appropriated as aforesaid for their own use on the lands or tenements in their own occupation but not for sale. The conservators may from time to time with the consent of the Board alter the situation of any part or parts to be appropriated as aforesaid after having given such notice of the intended alteration as the Board shall direct: A.D. 1919.

(D) There shall be appropriated and set out by the valuer to the satisfaction of the Board field-gardens (not less in extent than fifty acres nor greater in extent than one hundred acres in all) for the use of the labouring poor of the said parishes:

(E) The free tenants customary tenants and residents inhabiting within the manor of Coity Wallia shall after the confirmation of this Order be entitled to pasture all manner of beasts without limit on the commons except such parts thereof as shall be sold or shall be appropriated under this Order for quarries or field-gardens:

(F) The conservators shall have power to set out make and maintain roadways bridlepaths and footpaths over the commons in such directions as may appear to them most commodious:

Provided always that no part of—

- (a) the portions of the common known as Hirwaun Common lying to the northward of the Bryncethin Branch and the portions of the same common lying to the northward of the Cardiff and Ogmore Branch of the Great Western Railway (which portions are hatched red on the said map);
- (b) the portion of Hirwaun Common lying to the southward of the Cardiff and Ogmore Branch of the Great Western Railway situate at a place called "Llwyn crwn" (which portion is also hatched red upon the said map);
- (c) the portion of Mynydd-y-Gaer Common lying between the Ogwr Fach River and a road leading from Buarthau near Black Mill to a farmhouse called Llwyn-Helyg (which portion is also hatched red on the said map);

shall be reserved for the playing of games or set out as field-gardens without the consent of the lord of the manor.



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PART III.

EXPENSES.

(A) The expenses of and incidental to the regulation of the commons except so far as they are defrayed out of any money that may be contributed for that purpose by any person or local authority or body of persons may be raised by the valuer by the sale in manner provided by the said Inclosure Acts of—

(a) any encroachments and inclosures upon the commons which have been unlawfully made and to which the persons in possession or receipt of the rents thereof have not acquired an indefeasible title by the operation of any statute of limitations; and

(b) subject to the approval of the conservators such part or parts not exceeding in all 25 acres of the portion of the commons hatched purple on the said map as in the opinion of the valuer are most suitable regard being had to all the circumstances of the case:

Provided that on the sale of any such encroachment or inclosure the person in possession or receipt of the rent of such encroachment or inclosure shall have a right or option of pre-emption on such terms and to be exercised within such time and in such manner as the Board may approve but so that the price at which any such encroachment or inclosure shall be so offered for sale to such person shall not exceed the value in the opinion of the Board of the land exclusive of any buildings or improvements thereon:

Provided also that any such sale shall be subject to a reservation to the lord of the manor and persons deriving title under him of all mines and minerals thereunder and of a right to work and win such mines and minerals by underground workings only without liability to pay any compensation in respect of any subsidence caused by the working or winning of such mines or minerals:

Provided also that if the money arising from such sales shall be more than sufficient to defray the said expenses any surplus shall be paid to the conservators to be applied by them as hereinafter provided.

(B) The expenses to be incurred by the conservators from time to time in the execution of their powers and duties shall be defrayed out of any moneys that may be received by the conservators in respect of—

(i) the sale of bracken as aforesaid;

(ii) any surplus money arising from sales under clause (A) of this part of this Provisional Order;

(iii) any money that may be contributed for that purpose by any person or local authority or body of persons;

(iv) any compensation paid to the conservators under Part IV. of this Provisional Order.



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PART IV.

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RESERVATION OF RIGHTS.

This Provisional Order is except so far as is herein expressly provided to be without prejudice to—

- (1) any rights of the commoners in or over the commons; and
- (2) any rights of the lord of the manor in or over the soil of the commons including the mines and minerals thereunder and all such rights may be exercised in the same manner and to the same extent and subject to the like liability (if any) to pay compensation as if this Provisional Order had not been made save and except that the said lord shall not be entitled to enter for the purpose of opening working and winning such mines and minerals or any adjoining minerals on the surface of any parts of the common appointed for the playing of games or appropriated as quarries or field-gardens or which shall be sold and that any such compensation shall be paid to the conservators to be applied by them as aforesaid and the conservators shall have power to sue for recover receive and give effectual receipts for such compensation; and
- (3) any rights of sporting and fishing over or on the commons.

PART V.

AWARD.

For the purpose of giving complete effect to this Provisional Order there shall be inserted in the award to be made in pursuance of the said Inclosure Acts such provisions not inconsistent with those Acts as the Board shall think desirable and proper.

PART VI.

DATE OF OPERATION OF ORDER.

This Order shall not come into force unless and until the sanction of the Local Government Board is obtained for the levying of the rates as hereinbefore provided.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this fifteenth day of January nineteen hundred and eighteen.

(L.S.)

(Signed)

A. D. HALL

Secretary.

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Printed by EYRE and SPOTTISWOODE, LTD.,

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